

Archival Source Packet

Jurisdiction	San Jose, CA
County	Santa Clara County
Official Code / Document Title	San Jose Municipal Code, Title 20 - Zoning, Chapter 20.100 - Administration and Permits, Part 3 - Performance/Property Conditions
Chapter / Section(s) Included	Chapter 20.100, Part 3 (includes Section 20.100.450 - Hours of Construction Within 500 Feet of a Residential Unit)
Issuing Authority	City of San Jose (codified via Municode)
Canonical Official URL(s)	https://library.municode.com/ca/san_jose/codes/code_of_ordinances?nodeId=TIT20ZO_CH20.100ADPE_PT3PECO
Access Date	2026-07-25
Effective / Amended Date	Not explicitly displayed on source

Archival cover sheet — not part of the official ordinance text.

Part 3 - PERMIT CONDITIONS

20.100.400 - Term.

Development permits shall automatically expire after twenty-four months, unless otherwise provided in the permit, from and after the date of issuance of the development permit if within such twenty-four-month period, the proposed use of the site or the construction of buildings has not commenced, pursuant to and in accordance with the provisions of the development permit, subject to the provisions of Section 20.100.500 below.

(Ords. 26248, 26820.)

20.100.410 - Conditions.

A.

The permit or approval, as issued, may be substantially different from the project proposed by the applicant.

B.

Certain conditions may be imposed by the director, the planning commission or the city council as conditions prior to release of permit or approval. Such conditions are conditions precedent to the effectiveness of the permit or approval. In such cases, the director shall receive the acceptance as set forth in Section 20.100.290 , but shall maintain custody of the permit or approval and no certificate of permit or approval shall be recorded until the condition has been satisfied.

(Ord. 26248.)

20.100.420 - Failure to install public improvements.

It shall be a violation of this title for any person who has signed the acceptance of a permit or approval issued pursuant to this chapter to fail to secure any public improvements required by the permit or approval within the time period specified. If no time period is specified, the time period for completion of improvements shall be deemed to be one year from the issuance of a building permit unless an extension has been granted in writing by the director or, if no building permit is required, one year from the issuance of the permit or approval.

(Ord. 26248.)

20.100.430 - Construction clean up.

It shall be a violation of this title for any person responsible for construction including but not limited to the permit holder and any contractor thereof to fail to keep the public right of way free from construction dirt and debris. All on-site construction debris shall be removed at least weekly.

(Ord. 26248.)

20.100.435 - Window glazing.

Unless otherwise indicated on an approved plan or in the approved permit, all first-floor, ground floor windows for any commercial use shall consist of transparent glass.

(Ord. 26455.)

20.100.440 - Maintenance of landscape.

It shall be a violation of this title for any property owner or other person in control of any lot to fail to install or maintain any landscaping required by a permit or approval issued pursuant to this chapter or otherwise in a manner that fails to fully comply with the provisions of Chapters 15.10 or 15.11 of Title 15 of this Code. Any vegetation, required by a permit or approval, or otherwise by Chapters 15.10 or 15.11 of Title 15 of this Code, which is dead or dying, shall be replaced within sixty days.

(Ords. 26248, 29243.)

20.100.450 - Hours of construction within 500 feet of a residential unit.

A.

Unless otherwise expressly allowed in a development permit or other planning approval, no applicant or agent of an applicant shall suffer or allow any construction activity on a site located within 500 feet of a residential unit before 7:00 a.m. or after 7:00 p.m., Monday through Friday, or at any time on weekends.

B.

Without limiting the scope of Section 20.100.310 , no applicant or agent of an applicant shall suffer or allow any construction activity on a site subject to a development permit or other planning approval located within 500 feet of a residential unit at any time when that activity is not allowed under the development permit or planning approval.

C.

This section is applicable whenever a development permit or other planning approval is required for construction activity.

(Ords. 26248, 26594.)

20.100.460 - On-site recycling.

On-site recycling of construction debris and/or materials shall only be allowed in conjunction with an approved development permit which sets forth the conditions applicable to such activity.

(Ords. 26248, 26455.)

20.100.465 - Storm water management - All projects.

A.

Any proposed development of real property that will create, on or above ground through installation, construction, or replacement, five thousand (5,000) square feet or more of impervious surface including within the public right of way shall be designed, comply, and be maintained in conformance with City Council Policy 6- 29, Post Construction Urban Runoff Management City Council Policy 8-14 Post- Construction Hydromodification Management, and the provisions of this Code.

B.

Any proposed development of real property that will require the demolition of a structure shall comply with City Council Policy 6-28, Management of Pollutants During the Demolition of Applicable Projects and all other requirements of federal and state law, rule or regulation, and this Code.

(Ord. 30906.)

20.100.470 - Storm water management - Projects disturbing less than one acre.

A.

All development projects with an approved Development Permit shall conform with the City of San José National Pollutant Discharge Elimination System (NPDES) Storm Water Permit and shall include Best Management Practices (BMPs) as specified in Council Policy 6-37, Projects Disturbing Less than One Acre: Construction Best Management Practices, to control the discharge of storm water pollutants, including sediments associated with construction activities.

B.

Prior to the issuance of a grading permit, the applicant may be required to submit an Erosion Control Plan to the City Project Engineer, Department of Public Works.

C.

The Erosion Control Plan shall comply with Council Policy 6-37, Projects Disturbing Less than One Acre: Construction Best Management Practices, to reduce impacts on the City's storm drainage system from construction activities.

(Ords. 26248, 26789, 31082.)

20.100.480 - Storm water management - Projects disturbing one acre or more.

A.

All development projects with an approved development permit that result in a land disturbance of one (1) acre or more shall, prior to the commencement of any clearing, grading or excavation, comply with the City of San José National Pollutant Discharge Elimination System (NPDES) General Construction Activities Permit as follows:

1.

The applicant shall develop, implement and maintain a storm water pollution prevention plan (SWPPP) to control the discharge of storm water pollutants including sediments associated with construction activities.

2.

The applicant shall file a notice of intent (NOI) with the state water resources control board (SWRCB).

B.

Along with these documents, the applicant may also be required to prepare an erosion control plan. The erosion control may include BMPs as specified in the California Storm Water Best Management Practice Handbook for reducing impacts on the city's storm drainage system from construction activities.

C.

Prior to the issuance of a grading permit, the applicant shall submit copies of the NOI and erosion control plan (if required) to the city project engineer, department of public works.

D.

The applicant shall maintain a copy of the most current SWPPP on site and shall provide a copy to any city representative or inspector on demand.

E.

The applicant shall implement and maintain all best management practices (BMPs) or control measures identified in the SWPPP and/or erosion control plan.

F.

Any proposed development of real property that will create, on or above ground through installation, construction, or replacement of one acre or more of impervious surface shall be designed in conformance and comply with City Council Policy No. 8-14, entitled Post-Construction Hydromodification Management, and the provisions of this chapter.

(Ords. 26248, 26789, 26995, 28301, 30906.)

20.100.490 - Amendments.

A.

Any development permit holder may, at any time, file an application form for a permit amendment with the director. An amendment shall mean any addition, deletion, or modification of any development permit, provided that such amendment does not alter the general character, use, or intensity of the development permit to be amended.

B.

The procedures set forth in this chapter for the processing of an application for a development permit shall equally apply to an application for amendment except as hereinafter expressly set forth. The

review of the application for an amendment shall be limited to consideration of those conditions or specifications proposed to be amended in the application.

(Ord. 26248.)